

## 25STCV31517 25STCV31517

County: los-angeles

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Case Number: 25STCV31517 Hearing Date: July 8, 2026 Dept: 730

Superior Court of

California

County of Los Angeles

Department

730

KENNETH

MAK,

Plaintiff,

vs.

MAZDA

MOTOR OF AMERICA, INC.,

Defendant.

Case

No.:

25STCV31517

Hearing

Date:

July 8, 2026

## ORDER

### GRANTING PLAINTIFF KENNETH MAK'S MOTION FOR ATTORNEY FEES AND COSTS

#### I. BACKGROUND

##### Plaintiff

Kenneth Mak ("Mak") entered into a warranty contract with Defendant Mazda Motors of America ("Mazda") regarding a 2024 Mazda CX-90 PHEV AWD ("subject vehicle"). The subject vehicle allegedly has defects and nonconformities making the car effectively worthless. Mazda allegedly failed to reasonably repair or reimburse Mak for the vehicle. Mak sues Mazda for two causes of action, including breach of the implied warranty of merchantability.

##### On

March 11, 2026, Mak filed notice of conditional settlement of the entire case.

##### On

March 16, 2026, Mak filed the instant motion for attorney's fees. Mazda opposes. Mak replies.

#### II. LEGAL STANDARD

##### Attorneys' fees are allowed

as costs when authorized by contract, statute, or law. (Code of Civil Procedure § 1033.5, subd. (a)(10)(B).[1]) In a lemon law action, costs and expenses, including attorney's fees, may be recovered by a prevailing buyer under the Song-Beverly Act. (See Civ. Code, § 1794(d).) Section 1794 provides: "If the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." (Civ. Code, § 1794.) Thus, the statute includes a "reasonable attorney's fees" standard. The attorney bears the burden of proof as to "reasonableness" of any fee claim. (§ 1033.5(c)(5).) This burden requires competent evidence as to the nature and value of the services rendered. (Martino v. Denevi (1986) 182 Cal.App.3d 553, 559.) "Testimony of an attorney as to the number of hours worked on a particular case is sufficient evidence to support an award of

attorney fees, even in the absence of detailed time records.” (Ibid.)

A plaintiff’s verified billing invoices are prima facie evidence that the costs, expenses, and services listed were necessarily incurred. (See *Hadley v. Krepel* (1985) 167 Cal.App.3d 677, 682.) “In challenging attorney fees as excessive because too many hours of work are claimed, it is the burden of the challenging party to point to the specific items challenged, with a sufficient argument and citations to the evidence. General arguments that fees claimed are excessive, duplicative, or unrelated to not suffice.” (*Lunada Biomedical v. Nunez* (2014) 230 Cal.App.4th 459, 488, quoting *Premier Med. Mgmt. Sys., Inc. v. California Ins. Guarantee Ass’n* (2008) 163 Cal.App.4th 550, 564.) The Court has discretion to reduce fees that result from inefficient or duplicative use of time. (*Horsford v. Bd. of Trustees of California State Univ.* (2005) 132 Cal.App.4th 359, 395.)

In determining a reasonable attorney fee, the trial court begins with the lodestar, i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate. (*Warren v. Kia Motors America, Inc.* (2018) 30 Cal.App.5th 24, 36.) The lodestar may then be adjusted based on factors specific to the case in order to fix the fee at the fair market value of the legal services provided. (Ibid.) These facts include (1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, (4) the contingent nature of the fee award. (Ibid.)

#### IV. DISCUSSION

Mak moves for an award of attorney fees in the amount of \$17,457.54, consisting of (1) \$14,670.00 in attorney fees, (2) \$9,035.22 in costs and expenses, and (3) an additional \$1,800 for reviewing the opposition, drafting a reply, and attending the hearing on this motion.

##### A. Entitlement to Attorney Fees

Mak seeks an award of attorney’s fees pursuant to a settlement agreement reached by the parties. On March 16, 2026, Mak accepted Mazda’s settlement agreement for \$56,353.62

in exchange for surrender of the Subject Vehicle and settlement of the case plus attorneys' fees, costs, and expenses. (Mot., Cha Decl. ¶ 10, Ex. A.)

It is undisputed that Mak is the prevailing party in this action and is entitled to a reasonable amount in attorney fees.

## B. Reasonableness of Fees

### 1. Reasonable Hourly Rate

In assessing the reasonableness of hourly billing rates, "the court may rely on its own knowledge and familiarity with the legal market, as well as the experience, skill, and reputation of the attorney requesting fees [citation], the difficulty or complexity of the litigation to which that skill was applied [citations], and affidavits from other attorneys regarding prevailing fees in the community and rate determinations in other cases." (569 East County Boulevard LLC v. Backcountry Against the Dump, Inc. (2016) 6 Cal.App.5th 426, 437; see Mountjoy v. Bank of America, N.A. (2016) 245 Cal.App.4th 266, 272 ["a reasonable hourly rate is the product of a multiplicity of factors . . . [including] the level of skill necessary, time limitations, the amount to be obtained in the litigation, the attorney's reputation, and the undesirability of the case"].) "The reasonable hourly rate is that prevailing in the community for similar work." (PLCM Group v. Drexler (2000) 22 Cal.4th 1084, 1095.) "The experienced trial judge is the best judge of the value of professional services rendered in [her] court." (Ibid.)

Mak seek to recover attorneys' fees for 2 different attorneys who worked on the case: Alex Cha, at a rate of \$600.00 an hour, and Ha Ri Lee, at a rate of \$300.00 per hour. (Id. at ¶ 12.) 23.3 hours are attributed to Cha, while 2.3 hours are attributed to Lee. (Ibid.) Cha attested to the reasonableness of the rates, providing multiple examples of LASC judges adopting Cha's \$550.00 to \$600.00 rate. (Id. at ¶¶ 14-19.)

Mazda argues the hourly rates sought are inappropriate given the context of this case. Pursuant to Morris v. Hyundai Motor America (2019) 41 Cal.App.5th 24, 41-42, a court

may take into account other factors when determining the reasonableness of the rate: "the matter was not complex; that it did not go to trial; that the name partners were doing work that could have been done by lower-billing attorneys; and that all the attorneys were doing work that could have been done by paralegals." Mazda claims the work was not complex, as this is a routine Lemon Law case requiring no heightened knowledge or skill. There were no court appearances, depositions, law and motion, or vehicle inspection. Mak argues in reply that the reason this action was resolved so quickly was, in part, due to Cha's expertise.

Mak's counsel seeks \$14,670.00 in attorney fees for 25.6 hours of work. Given all of the circumstances here, e.g., swiftness of resolution, lack of complexity, work done by Cha that could have been done by Lee, lack of billing for support staff time, attorneys' experience in the field based on the papers filed in this case, and the court's own knowledge and familiarity with the legal market, etc., the court finds that a reasonable hourly rate for Cha in this case is \$550.00, which is within a reasonable range relative to rates awarded to comparable attorneys for comparable work.

## 2. Reasonable Hours

### Incurred

"A trial court assessing attorney fees begins with a touchstone or lodestar figure, based on the 'careful compilation of the time spent and reasonable hourly compensation of each attorney ... involved in the presentation of the case.'" (Christian Research Institute v. Alnor (2008) 165 Cal.App.4th 1315, 1321.) "The reasonableness of attorney fees is within the discretion of the trial court, to be determined from a consideration of such factors as the nature of the litigation, the complexity of the issues, the experience and expertise of counsel and the amount of time involved. The court may also consider whether the amount requested is based upon unnecessary or duplicative work." (Wilkerson v. Sullivan (2002) 99 Cal.App.4th 443, 448.)

### A prevailing party's verified billing

invoices are prima facie evidence that the costs, expenses, and services listed were necessarily incurred. (Hadley v. Krepel (1985) 167 Cal.App.3d 677, 682.) "In challenging attorney fees as excessive because too many hours of work are claimed, it is the burden of the challenging party to point to the specific items challenged, with a sufficient argument and

citations to the evidence.” (Lunada Biomedical v. Nunez (2014)  
240 Cal.App.4th 459, 488.)

Mak seeks to recover attorney fees for 25.6  
hours spent litigating this matter. Counsel submitted verified billing records  
in regard to this matter, stemming from an initial call with Mak less than a  
month prior to filing this motion. (Mot., Cha Decl. ¶ 12, Ex. B.) A plaintiff’s  
verified billing invoices are prima facie evidence that the costs, expenses,  
and services listed were necessarily incurred. (See Hadley v. Krepel  
(1985) 167 Cal.App.3d 677, 682.)

Mazda argues Mak’s fee invoice contains  
several excessive, duplicate and clerical fees that should be subject to  
reduction or elimination. The Court agrees, in part, with some of the requests  
are unreasonable. The Court strikes the following tasks:

Date

Biller

Description

Hrs/Rate

Reduction Amount

Reason

10/10/25

AC

Consolidate  
workorders and create service summary

0.40,  
\$600/hr

\$240.00

Clerical  
work.

10/28/25

AC

Discuss  
and strategize case

0.40,  
\$600/hr

\$240.00

No  
evidence of other party who strategized, no evidence of occurrence.

10/31/25

AC

Analyze  
court's notice of case management conference and OSC hearing

0.40,  
\$600/hr

\$180.00

Improper  
time allotment to review form OSC.

12/10/25

AC

Receipt and review Defendant's  
meet and confer re: discovery requests

0.20, \$600/hr

\$120.00

Mazda's declaration attests MnC  
did not occur.

The remaining tasks of preparing the  
complaint, preparing discovery, and reading and responding to Mazda's  
communications are proper. The Court also finds the time and fees attributed to  
this motion to be reasonable.

Mazda also argues certain fees are unreasonable,  
as Mak made no attempt to resolve this issue without litigation or without  
instantly serving discovery. Mazda points to Carver v.  
Volkswagen Group of America, Inc. (2024) 107 Cal.App.5th 888, in  
which the court held there is no entitlement to attorney's fees when a  
manufacturer complies with the Song-Beverly Act by offering to repurchase  
pre-litigation. Mazda argues that by failing to attempt to regain payment  
pre-litigation, Mak denied Mazda of Mazda's right to resolve this  
pre-litigation and avoid fees.

As  
noted in Mak's reply, the Song-Beverly Act imposes affirmative obligations on  
the manufacturer, not the plaintiff. Civil Code section 1793.2, subdivision  
(d)(1), provides if the manufacturer "does not service or repair the goods to  
conform to the applicable express warranties after a reasonable number of  
attempts, the manufacturer shall either replace the goods or reimburse the  
buyer in an amount equal to the purchase price paid by the buyer, less that  
amount directly attributable to use by the buyer prior to the discovery of the  
nonconformity." If a manufacturer cannot service or repair the motor vehicle,  
it shall either replace it or make prompt restitution. (Id. at subd.  
(d)(2).) There is no obligation upon the buyer to seek informal resolution of a  
claim after a reasonable amount of attempts at having the vehicle repaired. Mak  
executing his right to seek reimbursement via litigation does not negate Mak's  
right to attorney fees.

Similar,  
the Mak's quick service of discovery also does not indicate unreasonable fees.  
Mak served discovery pursuant to statute. A plaintiff may serve discovery 10



days after service of complaint, even if a defendant has yet to appear. (§§ 2030.020, 2031.020.) Mak served the complaint on Mazda on October 30, 2025. Discovery was not drafted until November 21, 2025; therefore, it could not have been served until November 21, 2025, 21 days after serving the complaint on Mazda. The Court will not strike attorney's fees stemming from properly served discovery.

The

Court finds the time incurred by Mak's counsel reasonable, outside of the 1.3 hours subject to striking. The new total for attorney's fees is \$12,790.00.

#### C. Costs

Allowable costs "shall be reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation." (Code Civ. Proc., § 1033.5, subd. (c)(2).) Any items not specifically mentioned by statute "may be allowed or denied in the court's discretion." (Id., subd. (c)(4).) The Beverly-Song Act allows a successful plaintiff to recover both "costs" and "expenses." (See Civ. Code, § 1794, subd. (d).)

"If the items appear to be proper charges the verified memorandum is prima facie evidence that the costs, expenses and services therein listed were necessarily incurred by the defendant [citations], and the burden of showing that an item is not properly chargeable or is unreasonable is upon the [objecting party].' [Citation.]" (Nelson v. Anderson (1999) 72 Cal.App.4th 111, 131.)

Mak requests a total of \$987.54 in costs and expenses. Mazda does not contest Mak's right to the claimed costs. Therefore, the Court awards the sought costs.

#### V. CONCLUSION

Plaintiff Kenneth Mak's motion for attorney fees is GRANTED, in part. The Court awards attorney fees of \$12,790.00 and costs of \$987.54.

Mak is ordered to give notice.

DATED:

July 8, 2026

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Hon. Alexander C.D. Giza

Judge of the Superior Court

PLEASE

TAKE NOTICE:

- Parties

are encouraged to meet and confer after reading this tentative ruling to see if they can reach an agreement.

- If

a party intends to submit on this tentative ruling, the party must send an email to the court at [email protected] with the Subject line "SUBMIT" followed by the case number. The body of the email must include the hearing date and time, counsel's contact information, and the identity of the party submitting.

- Unless

all parties submit by email to this tentative ruling, the parties should arrange to appear remotely (encouraged) or in person for oral argument. You should assume that others may appear at the hearing to argue.

- If

the parties neither submit nor appear at hearing, the Court may take the motion off calendar or adopt the tentative ruling as the order of the Court. After the Court has issued a tentative ruling, the Court may prohibit the withdrawal of the subject motion without leave.

[1] Undesignated statutory references are to the Code of Civil Procedure.